

Form F16A.04A: Affidavit (FOAEAA) - Establish or Vary a Support Provision (Ex parte)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____
(Print full name)

☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT

This affidavit is made in support of an application by a person under section 7 of the *Family Orders and Agreements Enforcement Assistance Act*, R.C.S., 1985, c.4 (2nd Supp.) to assist with the establishment or variation of a support provision.

I, _____, of _____
(Print your name) (City and Province)

swear or affirm that:

1. I, _____, am or will be seeking to have a support
(Print your name)

provision (check the one that apply):

- ☐ established; or
☐ varied

2. I make this affidavit in support of an application under section 7 of the *Family Orders and Agreements Enforcement Assistance Act*, R.S.C. 1985, c.4 (2nd Supp.) (the "FOAEAA") to request that the court make an

order under section 10 of that Act to authorize an official of the court to apply for the release of information under section 12 of that Act for the above-mentioned purpose.

3. The application under section 7 of the FOAEAA is made for the following reasons:

a.	_____

b.	_____

c.	_____

4. The information to be requested under section 12 the FOAEAA relates to

(Name of the person to whom the requested information relates)

5. Reasonable steps have been taken to locate _____.
(Name of the person to whom the requested information relates)

Those steps are:

a.	_____

b.	_____

c.	_____

6. _____ has not been located.
(Name of the person to whom the requested information relates)

Paragraphs 7 to 9 must be completed where the Application is being filed by an individual. If applicable, provide details and supporting documentation for paragraphs 8 to 10.

7. The sole purpose of the application under section 7 of the FOAEAA is to obtain information to _____ a support provision.
(establish or vary)

8. I (am / am not) subject to :

- ☐ any court order, agreement, undertaking or recognizance or any other document of a similar nature restricting communication or contact with

_____; and
(Name of the person or children to whom the requested information relates)

- ☐ any proceeding restricting communication or contact with

_____.
(Name of the person or children to whom the requested information relates)

9. I (have / have not) caused or attempted to cause physical harm to

(Name of the person or children to whom the requested information relates)

or have caused them to fear for their or someone else's safety or security.

10. I (was / was not) charged with or found guilty of an offence against

_____.
(Name of the person or children to whom the requested information relates)

11. The information to be requested under section 12 of the FOAEAA is necessary to:

- ☐ establish a support provision; or
☐ vary a support provision

12. The information that is being requested for release under section 5(1) of the *Release of Information for Family Orders and Agreements Enforcement Assistance Regulations* (Canada) is as follows:

- ☐ The address of the person named in this application
☐ The name and address of the employer of the person named in this application
☐ The information related to the person named in this application, other than their Social Insurance Number, that is set out in the federal tax form(s) checked below, and that is requested for the following taxation year(s) unless otherwise specified beside the specific form:

(Specific taxation year(s) for which the information is requested)

Federal Tax Form(s)	Year(s) requested (if different than above)
Basic Information	
☐ Income Tax and Benefits Return (T1)	
☐ Schedule 1 – Federal Tax	
☐ Schedule 2 – Federal Amounts Transferred from your spouse or Common-Law Partner	
☐ Schedule 3 – Capital Gains (or Losses)	
☐ Schedule 4 – Statement of Investment Income	
☐ Schedule 5 – Amounts for Spouse or Common-Law Partner and Dependants	
☐ Schedule 6 – Canada Workers Benefit	
☐ Schedule 7 – RRSP, PRPP, and SPP Unused Contributions, Transfers, and HBP or LLP Activities	
☐ Schedule 8 – Canada Pension Plan Contributions and Overpayment	
☐ Schedule 9 – Donations and Gifts	
☐ Schedule 10 – Employment Insurance (EI) and Provincial Parental Insurance Plan (PPIP) Premiums	
☐ Schedule 11 – Federal Tuition, Education, and Textbook Amounts and Canada Training Credit	
☐ Schedule 12 – Home Expense Accessibility	
☐ Schedule 13 – Employment Insurance Premiums on Self-Employment and Other Eligible Earnings	
☐ Schedule 14 – Climate Action Incentive	
For non-resident and deemed residents:	
☐ Schedule A – Statement of World Income (for Non-Residents and Deemed Residents of Canada)	
☐ Schedule B – Allowable Amount of Non-Refundable Tax Credits (for Non-Residents of Canada)	
☐ Schedule C – Electing Under Section 217 of the Income Tax Act (for Non-Residents of Canada)	
☐ Notice of Assessment and Notice of Reassessment	
☐ Statement of Trust Income Allocations and Designations (T3)	
☐ Statement of Remuneration Paid (T4)	
☐ Statement of Pension, Retirement, Annuity, and Other Income (T4A)	
☐ Statement of Old Age Security (T4A(OAS))	
☐ Statement of Canada Pension Plan Benefits (T4A(P))	
☐ Statement of Distributions from a Retirement Compensation Arrangement (RCA) (T4A-RCA)	
☐ Statement of Employment Insurance and Other Benefits (T4E) or Statement of Employment Insurance and Other Benefits (Quebec) (T4EQ)	
☐ Statement of Employee Profit-Sharing Plan Allocations and Payments (T4PS)	
☐ Statement of Income from a Registered Retirement Income Fund (T4RIF)	
☐ Statement of RRSP Income (T4RSP)	
☐ Statement of Investment Income (T5)	
☐ Statement of Real Estate Rentals (T776)	
☐ Statement of Employment Expenses (T777)	

☐ Government Service Contract Payments (T1204)	
☐ Statement of Farming Activities (T2042) and documents related to the AgriStability and AgriInvest programs	
☐ Statement of Fishing Activities (T2121)	
☐ Statement of Business or Professional Activities (T2125)	
☐ Declaration of Conditions of Employment (T2200)	
☐ Statement of Benefits (T5007)	
☐ Statement of Securities Transactions (T5008)	
☐ Statement of Partnership Income (T5013)	
☐ Statement of Contract Payments (T5018)	

- ☐ The information that is set out in the federal tax form(s) specified in the attached annex(es) related to the corporation(s) identified below:

(Name of the corporation)

(Name of the corporation)

(Name of the corporation)

13. The information will only be used for the purpose identified in this affidavit.

14. I make this affidavit in good faith.

SWORN TO or AFFIRMED at _____, this _____ day of _____, 20____.

Signature

Signature of Person Authorized to Administer Oaths

ANNEX



**In the Supreme Court of
Newfoundland and Labrador
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COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20_____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

Information requested concerning a person's corporation

In relation to the application of _____
(Full name of the party making application)

made pursuant to section 7 of the *Family Orders and Agreements Enforcement Assistance Act*, R.S.C., 1985, c.4 (2nd Supp.) (FOAEAA) for the purpose of _____ a support
provision. (establishing or varying)

The information is sought related to

(Name of the corporation)

that is controlled directly or indirectly within the meaning of subsection 256(5.1) of the *Income Tax Act*, RSC 1985, c.1 (5th Supp.) by

(Name of person against whom a support provision is sought or is to be varied)

and that are set out in the federal tax form(s) checked below and that can be found in federal information banks prescribed in section 2 of the *Release of Information for Family Orders and Agreements Enforcement Assistance Regulations*, SOR/2023-125:

- ☐ The information that is set out in the federal tax form(s) checked below is requested for the following taxation year(s) unless otherwise specified beside the specific form:

(Specific taxation year(s) for which the information is requested)

Federal Tax Form(s)	Year(s) requested (if different than above)
☐ T2– Corporation Income Tax Return	
☐ Schedule 1 – Net Income (loss) for Income Tax Purposes	
☐ Schedule 5 – Tax Calculation Supplementary – Corporations (this provides details of any provincial tax or credits)	
☐ Schedule 6 – Summary of Dispositions of Capital Property	
☐ Schedule 100 – Balance Sheet Information	
☐ Schedule 50 – Shareholder Information	
☐ Schedule 125 – Income Statement Information	